



UNITED STATES MARINE CORPS
MARINE CORPS SYSTEMS COMMAND
2200 LESTER STREET
QUANTICO, VIRGINIA 22134-5050

IN REPLY REFER TO:
CT Code: 028-PEO LS
J&A Number: 26,052

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Marine Corps Systems Command (MARCORSYSCOM)
Program Executive Officer Land Systems (PEO LS)
Program Manager (PM) Ground Based Air Defense (GBAD)
2200 Lester Street
Quantico VA 22134-5050

2. Description of the Action Being Approved.

This Justification and Approval (J&A) authorizes and approves the use of other than full and open competition to procure NightFighter Mini systems to include initial spares to support operation, maintenance and sustainment of this non-developmental system. This action is for award of a sole-source contract to SteelRock Technologies Limited, 12 Upper Berkeley Street, W1H 7QD, United Kingdom.

PM GBAD received Modification 1 to the Urgent Statement of Need (USON) for Organic - Counter small Unmanned Aircraft Systems (O-CsUAS) dated 9 August 2025.

3. Description of Supplies/Services.

The proposed action will procure up to 190 NightFighter Mini systems to include initial spares to support sustainment of this non-developmental system.

The NightFighter Mini provides a compact, man-portable or weapons-mountable high-powered electronic warfare tool designed to disrupt and neutralize targeted radio frequency (RF) signals in specific directions. The NightFighter Mini uses advanced directional jamming technology, it selectively interferes with communications and navigation systems, rendering threat UAS ineffective. Ideal for military and security applications, it provides precise control over the jamming area, ensuring minimal collateral impact while disrupting enemy operations.

[REDACTED] There are no other sources available for this system and no other supplies satisfy the agency's requirements in a USON environment.

Estimated Dollar Value

The total estimated value for the PM GBAD procurement, if fully executed, is [REDACTED]. The estimate by appropriation is summarized in the table below.

[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authorities permitting use of other than full and open competition are 10 United States Code (U.S.C.) §3204(a)(2), Unusual and Compelling Urgency.

5. Rationale Justifying Use of Cited Statutory Authority.

There is an unusual and compelling need for the rapid deployment of O-CsUAS systems to forward deployed ground and aviation units [REDACTED]

[REDACTED] The period of performance for this effort will not exceed one year.

SteelRock Technologies is the only responsible source of the highly specialized NightFighter Mini. Award to any other source would result in substantial duplication of costs in fulfilling the agency's requirements for highly specialized equipment not expected to be recovered through competition and unacceptable delays in fulfilling agency requirements. An award to any other source is estimated to delay the delivery of all related systems required to fulfill Modification 1 of the USON to the Fleet Marine Force by approximately five months.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

In accordance with FAR Part 5, this action is exempt from synopsisizing a proposed contract action. FAR 5.101(b)(2) efforts under FAR 6.103-2(a) are exempt from synopsis. No additional market research was conducted because of the compelling urgent need for this capability.

7. Determination of Fair and Reasonable Cost.

In accordance with FAR 15.402, the Contracting Officer will ensure that supplies and services procured, as a result of this J&A, are at fair and reasonable prices. The contractor will be required to submit a formal proposal with certified cost and pricing data and sufficient information to support the accuracy and reliability of their estimate. An analysis of the proposal will be performed by technical analysts from PM GBAD and contract specialists, with the

assistance of the Defense Contract Management Agency (DCMA) and Defense Contract Audit Agency (DCAA), as needed. The Contracting Officer will analyze the various cost elements that are presented in the proposal, and review the actual costs from previous procurements, if applicable. Furthermore, the Government will also utilize the PM GBAD Independent Government Cost Estimate as part of their evaluation. Award will only be made to the contractor if the negotiated pricing is found fair and reasonable based upon all available data.

8. Actions to Remove Barriers to Future Competition.

A program of record for O-CsUAS is planned to initiate in Fiscal Year 2027. The components of this future program will be procured through full and open competition as it is expected that advanced non-kinetic defeat technologies should be mature by that time.

For reasons set forth in Paragraph 5 above, PM GBAD has no plans to compete the NightFighter Mini systems at this time. If future procurements of the component described herein are necessary and if another potential source emerges, GBAD will assess whether competition for future requirements is feasible. Any future actions will be reviewed by PM GBAD to offer competition to the greatest extent possible.



CERTIFICATION AND APPROVAL

TECHNICAL AND REQUIREMENTS CERTIFICATION:

I certify the facts and representation under my cognizance, which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE:

[REDACTED]

[REDACTED]

Date

PdM ORGANIC-COUNTER SMALL UNMANNED AIRCRAFT SYSTEMS
PM GROUND BASED AIR DEFENSE

REQUIREMENTS COGNIZANCE:

[REDACTED]

[REDACTED]

Date

PROGRAM MANAGER
PM GROUND BASED AIR DEFENSE

REVIEW FOR LEGAL SUFFICIENCY:

[REDACTED]

[REDACTED]

[REDACTED]

Date

ASSOCIATE COUNSEL
MARINE CORPS SYSTEMS COMMAND

CONTRACTING OFFICER APPROVAL:

[REDACTED]

STASIA BAKER
CONTRACTING OFFICER
PM GROUND BASED AIR DEFENSE

Date